

		involving justiciable questions relating to the rights or obligations of a party.’ . . . ‘The ‘actual controversy’ language in . . . section 1060 encompasses a probable future controversy relating to the legal rights and duties of the parties.’ . . . It does not embrace controversies that are ‘conjectural, anticipated to occur in the future, or an attempt to obtain an advisory opinion from the court.’” (Lee v. Silveira (2016) 6 Cal.App.5th 527, 546.) Under its declaratory relief cause of action, U.S. Bank seeks a judicial determination that the Castle loan has not been satisfied, and U.S. Bank is not obligated to release the Castle DOT until the loan has been satisfied. As Golden points out, the declarations sought by U.S. Bank have no relation to any legal rights and duties of Golden. Thus, the Demurrer to the first cause of action for declaratory relief is SUSTAINED with 20 days leave to amend. Moving party to give notice
102	Kohlman vs. Adaptive Behavior Center, Inc 24-01449191	Motion to Strike Cross-Complaint Cross-Defendant Adaptive Behavior Center, Inc. (“Cross-Defendant”) moves to strike the Cross-Complaint brought by Cross-Complainant Delight House, Inc. pursuant to Code of Civil Procedure section 877.6(c) and California Rules of Court, rule 3.1382. Plaintiff Irene Kohlman, as an individual and as successor-in-interest and personal representative of the Estate of Donald Kohlman did not oppose the motion. Cross-Complainant/Defendant Delight House, Inc. opposes the motion. Pursuant to Code of Civil Procedure section 877.6(c): “A determination by the court that the settlement was made in good faith shall bar any other joint tortfeasor or co-obligor from any further claims against the settling tortfeasor or co-

	obligor for equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault.” (Code Civ. Proc., § 877.6, subd. (c).) California Rules of Court, rule 3.1382 states: “A motion or application for determination of good faith settlement may include a request to dismiss a pleading or a portion of a pleading. The notice of motion or application for determination of good faith settlement must list each party and pleading or portion of pleading affected by the settlement and the date on which the affected pleading was filed.” On March 24, 2026, the Court granted Defendant Adaptive Behavior Center, Inc.’s Application for Good Faith Settlement. (ROA 161.) According to the Settlement Agreement presented to the Court in the Application, the Settlement Agreement at issue in the Application for Good Faith Settlement between Plaintiff and Defendant Adaptive Behavior Center, Inc. relates only to the Complaint filed on December 23, 2024, which is the Complaint brought by Plaintiff in her individual capacity, Case No. 2024 01449191. Accordingly, the Court will GRANT the motion to strike the Cross-Complaint filed in relation to the Complaint filed by Plaintiff in her individual capacity. This Cross-Complaint was filed on 02/24/2025 and is ROA 21. The Court will not, however, strike the Cross-Complaint filed by Delight House, Inc. against Adaptive Behavior for the claims brought by Plaintiff Irene Kohlman, as Successor-in-Interest and Personal Representative of the Estate of Donald Kohlman. (ROA 232.) Again, the Court only addressed the Settlement Agreement for those claims brought by Plaintiff in her individual capacity – not those brought as Successor-in-Interest and Personal Representative of the Estate of Donald Kohlman. Thus, the Court will not strike ROA 232, which is a cross-complaint related to the Complaint brought by Plaintiff Irene Kohlman, as Successor-in-Interest and Personal Representative of the Estate of Donald Kohlman. In sum, the Motion to Strike is GRANTED as to the Cross-Complaint contained in ROA 21 and DENIED as to the Cross-Complaint contained in ROA 232. Moving party to give notice
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103	D. vs. Seashore Academy, LLC 24-01384607	Motion for Leave to File First Amended Complaint Plaintiff KELLY DOOLEY, as Guardian ad litem for her minor child Z.D (“Plaintiff”), will and hereby does move the Court pursuant to CCP §§ 473(a)(1) and 576, and in full compliance with CRC, Rule 3.1324, for an order granting Plaintiff leave to file a First Amended Complaint (“FAC”). Motion is GRANTED. [CCP§473(a)(1); CRC, Rule 3.1324.] Plaintiff to separately file the First Amended Complaint. Plaintiff to give notice. Notably, denial of leave to amend is appropriate where inexcusable delay and probable prejudice to the opposing party is shown. This may happen where a proposed amendments opens up an entirely new field of inquiry without any satisfactory explanation as to why the major change in point of attack had not been made long before trial. (Estate of Murphy v. Gulf Ins. Co. (1978) 82 Cal.App.3d 304, 311.) In this instance, Plaintiff’s Complaint containing six (6) causes of action was filed on 3/6/2024. On 11/3/2025, Plaintiff substituted in new counsel, Michael A. Trauben, of Singh, Singh and Trauben, LLP. Mr. Trauben declares, “The facts giving rise to the amended allegations were discovered by successor counsel after the firm’s substitution into this matter on November 3, 2025. Upon a thorough review of the file, the deposition testimony, and Defendant’s own admissions concerning its unlicensed status and business operations, it became clear that the existing factual allegations amply support the additional legal theory under the Unruh Civil Rights Act. (Decl. of Trauben¶5.) Thereafter, despite having knowledge of the alleged need for the addition of a Violation of Ca Civ Code§51
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